

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

KENNETHAN BAIRD,

Respondent

) Case Number: FCS-17-352589

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REVIEW HEARING: COMPLIANCE REVIEW REGARDING CONTEMPT

TENTATIVE RULING

The matter is on calendar for Respondent Kennethan Baird to provide an update on his completion of 50 hours of community service. Mr. Baird's appearance is required in-person or by Zoom. If Mr. Baird chooses to appear by Zoom, Mr. Baird must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALISON MACDUCKSTON FRANCIS,

Petitioner

VS.

JAMES BRYMER,

Respondent

) Case Number: FLD-19-396705

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

VICKY LOW,

Petitioner

VS.

KENDRICK LOW,

Respondent

) Case Number: FDI-18-789941

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

RELEASE OF FUNDS BY HERSH FAMILY LAW (50/50) SINCE JULY 2021

TENTATIVE RULING

A. Procedural History

- 1) Petitioner Vicky Low (Wife) and Respondent Kendrick Low (Husband) married on 7/25/1998 and separated on 4/25/2018, for a marriage of 19 years and 9 months. The parties have one adult daughter.
- 2) On 10/27/2021, Judgment was entered which incorporated the parties' Marital Settlement Agreement (MSA). The MSA provides in relevant part:
 - a. Section 2.03(f) – Jurisdiction is reserved over the characterization and division of Wife's IRA account.
 - b. Section 2.03(g) – The Court reserves jurisdiction to divide tangible personal property in the event the parties are unable to agree.
 - c. Section 2.07 - Jurisdiction is reserved over the following issues: (a) Wife's Family Code 2640 right to reimbursement for a \$25,000 contribution to acquisition of Moscow Street, according to proof; (b) the community's right to reimbursement for community investment in Husband's 1972 Chevelle, according to proof; (c) responsibility for tax obligations from before the date of separation, according to proof; (d) characterization

and apportionment of credit card payments paid pursuant to Article 2.05(e), according to proof; and (e) computation of interest paid to the Low Family Trust, according to proof.

- d. Section 2.05(d) - Upon sale of Moscow Street, the following payments shall be made through escrow: (1) commission and costs of sale; (2) mortgage held with San Francisco Fire Credit Union; (3) HELOC held with San Francisco Fire Credit Union; and (4) \$90,000 principal obligation owed to the Low Family Trust.
- e. Section 2.05(e) - Upon sale of the Moscow Street, the other following obligations will be paid, through escrow if possible, and if payment through escrow is not possible, from the gross proceeds of sale before division by the parties: (1) interest due to the Low Family Trust through July 31, 2021, less the \$11,400 in interest previously paid through year-end 2014; (2) any outstanding tax obligations incurred prior to the date of separation; (3) loan against Husband's deferred compensation account; and (4) credit cards for which both parties might be held liable. The court reserves jurisdiction to allocate the debts paid in Article 2.05(e) between the parties' community and separate obligations, as set forth in Article 2.07.
- f. Section 2.05(f) - Upon payment of the items set forth in Article 2.05(d) and (e), the remaining proceeds of sale will be divided equally by the parties.
- g. Section 2.05(g) - Each party will report, for federal and state income tax purposes, half of the total gain realized on the sale of the residence. If the parties are unable to exclude their gain entirely under the Internal Revenue Code Section 121, then each party will determine his or her net tax increase as a result, i.e., the difference between his or her total tax obligation in the tax year for which the tax on the gain is paid and what it would have been had the gain been deferred. The party having the smaller net tax increase will pay to the other, half of the difference between the two net tax increases.
- h. Section 2.05(h) - The court in the parties' dissolution action will reserve jurisdiction to make such orders relating to sale of the family residence that are necessary to carry out this agreement if the parties fail to cooperate or agree, including orders with respect to the sale process itself, provisions regarding the residence pending sale, disposition of proceeds, and tax consequences.

1 3) On for hearing is Vicky's Request for Order filed 4/1/2026. Vicky states that funds in the amount
2 of \$200,000 have been held in an interest-bearing account by Hersh Family Law (Vicky's former
3 attorney) since July 2021. Vicky states that the balance is now approximately \$170,000 due to
4 IRS levies and tax-related liabilities associated with the parties' 2016 taxes. Vicky states that the
5 parties have made multiple efforts to determine how these funds should be distributed but, to
6 date, no resolution has been reached. Vicky requests distribution of the funds in equal amounts to
7 each party.

8 4) On 5/27/2026, Kendrick filed a Responsive Declaration. Kendrick states the MSA reserved on
9 several issues which require resolution before the trust account proceeds are distributed. As set
10 forth below, Kendrick claims Vicky owes him a total of \$33,072 from Vicky's share of the trust
11 account proceeds. These include:

12 a. Wife's IRA Account (section 2.03(f) of the MSA) – Kendrick states he is entitled to one-
13 half of the \$23,964 community balance of the IRA, and should receive \$11,982 from
14 Wife's share of the trust account

15 b. Separate Property Contribution by Wife to Community Residence (section 2.07(a) of the
16 MSA) – Kendrick states it has been 5 years since the MSA was executed and Wife has
17 provided no documentation to prove a \$25,000 separate property contribution by Wife to
18 the community residence (which was sold). Husband asks the Court to terminate
19 jurisdiction over this issue.

20 c. Community Property Contribution to Husband's Separate Property 1972 Chevelle
21 Automobile (section 2.07(b) of the MSA) – Kendrick states it has been 5 years since the
22 MSA was executed and Wife has provided no documentation to prove Husband spent
23 community funds on his separate property 1972 Chevelle automobile. Husband asks the
24 Court to terminate jurisdiction over this issue.

25 d. Payments and Taxes Made After Date of Separation for Pre-Marital Income Tax
26 Obligations (Section 2.07(c) of the MSA) – Kendrick states he paid \$22,180 from his
27 separate property to cover the parties' 2016 tax obligation, and should receive \$11,090
28 from Vicky's share of the trust account
29

- 1 e. Credit Card Payments Made from Escrow (section 2.07(d) of the MSA) – Kendrick states
2 the MSA reserves jurisdiction over the “characterization and apportionment of the credit
3 card payments paid from escrow on sale of the family home, according to proof.”
4 Kendrick states no credit card payments were made from escrow. Kendrick asks the
5 Court to order each party to pay any and all credit card obligations in that party’s
6 respective name and indemnify the other party against any enforcement by creditors
7 against the other party.
- 8 f. Interest Owing to Low Family Trust (section 2.07(e) of the MSA) – Kendrick states the
9 MSA reserves jurisdiction to compute the interest owing to the Low Family Trust.
10 Kendrick states the Low Family Trust was paid \$24,300 in interest out of escrow of the
11 sale of the family home. Kendrick asks the Court to terminate jurisdiction over this issue.
- 12 g. Personal Property (sections 2.02(h) and 2.03(g) of the MSA) – Kendrick states the MSA
13 reserves jurisdiction to divide personal property between the parties. Kendrick estimates
14 that Vicky removed \$25,000 worth of household furniture, furnishings, fixtures, etc. from
15 the family residence prior to sale and requests Wife to reimburse him \$10,000 from
16 Wife’s share of the trust account.
- 17 h. Potential Tax and Penalty Liability for Husband’s Amended Tax Return for
18 2021 (section 2.05(g) of the MSA) Kendrick states Vicky has failed to provide
19 documentation to show the total cost of improvements made to the family residence.
20 Kendrick intends to amend his “2021 income tax returns for sale of the residence,” and
21 would like the Court to retain jurisdiction to order Vicky to indemnify Kendrick in the
22 event his amended 2021 income tax returns are audited and unpaid taxes and penalties are
23 due based on Vicky’s inability to prove the improvements to the residence.
- 24 5) On 5/28/2026, Vicky filed a Reply Declaration. Vicky did not respond to the specific issues
25 outlined in Kendrick’s Responsive Declaration. Instead, she reiterates her request that the Court
26 order the immediate equal division and release of the remaining escrow funds currently being
27 held “rather than continue revisiting and re-litigating historical disputes dating back many years.”
28 In the alternative, Vicky requests the Court to “equitably consider the fact that the original escrow
29

1 balance was approximately \$200,000 before substantial depletion caused by IRS levies and
2 unresolved community property related debt.”

3 **B. Findings and Order**

4 The Court has read and considered the pleadings, declarations, and other evidence submitted in this
5 matter. For good cause shown, the Court makes the following findings and orders:

6 1) Kendrick’s request for one half of Vicky’s IRA account is DENIED WITHOUT PREJUDICE.

7 There is insufficient proof of the character and value of the IRA account.

8 2) Kendrick’s request to terminate jurisdiction over Vicky’s potential \$25,000 separate property
9 reimbursement is DENIED.

10 3) Kendrick’s request to terminate jurisdiction over a potential reimbursement of community funds
11 used to purchase Kendrick’s separate property 1972 Chevelle is DENIED.

12 4) Kendrick’s request for Vicky to pay him one-half of the post-separation payroll deductions in the
13 amount of \$11,090 is DENIED WITHOUT PREJUDICE. There is insufficient proof of payments
14 of pre-marital income tax obligations.

15 5) Kendrick’s request that each party pay any and all credit card obligations in that party’s
16 respective name, and indemnify the other party against any enforcement by creditors against the
17 other party of the named party’s credit card obligations is GRANTED.

18 6) Kendrick’s request to terminate jurisdiction over interest paid to the Low Family Trust is
19 GRANTED. The Low Family Trust was paid \$24,300 in interest out of escrow of the sale of the
20 family home.

21 7) Kendrick’s request for reimbursement in the amount of \$10,000 as final settlement of the division
22 of tangible personal property is DENIED WITHOUT PREJUDICE. There is insufficient proof.

23 8) Pursuant to the MSA Article 2.07, the proceeds from the sale of the Moscow Street property are
24 being held to provide a “mechanism to ensure that any debts for which both parties might be held
25 liable are paid.” It has now been almost five years since Judgment was entered. Vicky’s request to
26 release the funds held by Hersh Family Law is GRANTED on the condition that the payments
27 required by Article 2.05(d) of the MSA have been paid (commission and costs of sale, mortgage
28 held with San Francisco Fire Credit Union, HELOC held with San Francisco Fire Credit Union,
29

and \$90,000 principal obligation owed to Low Family Trust). The funds shall be divided evenly between the parties.

9) The Court will prepare the finding and order after hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TODD GEORGOPAPADAKOS,

Petitioner

VS.

TANYA GEORGOPAPADAKOS,

Respondent

) Case Number: FDI-22-796813

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER RE: TERMINATION OF MARITAL STATUS AND JUDGMENT ON ALL
RESERVED ISSUES

TENTATIVE RULING

A. Procedural History

- 1) Petitioner Todd Georgopapadakos (Husband) and Respondent Tanya Georgopapadakos (Wife) married on 6/9/2022 and separated on 11/2/2021 for a marriage of 25 years and 5 months. The parties do not have minor children. Both parties are currently self-represented.
- 2) On 3/26/2025, following a three-afternoon trial in Dept. 404, Judge Costin issued a Final Statement of Decision in which Judge Costin (a) found that Wife breached her fiduciary duties to Husband; (b) divided some but not all of the parties' community property; (c) adjudicated permanent spousal support for Wife; and (d) awarded Husband \$50,000 in Family Code section 271 attorney's fees sanctions. Judge Costin did not terminate the parties' marital status during the long-cause hearings or within her Final Statement of Decision. Judge Costin noted in her Final Statement of Decision: "The Court... was not tasked... with valuation or division of the entirety of the parties' other assets and debts. The issues adjudicated by the Court were those framed by the parties in Todd's 7/19/24 RFO and Tanya's subsequent responsive pleadings. The parties still need to either reach agreement or schedule an additional trial for the Court to adjudicate any

1 remaining issues... If they are unable to reach agreement, the next step would be for the parties to
2 file an At Issue Memorandum...”

3 3) Now on for hearing is Husband’s Request for Order filed 4/10/2026 wherein Husband asks the
4 Court to (a) terminate the parties’ marital status nunc pro tunc to 2/19/2026 or alternatively to the
5 earliest date permitted by law; (b) “confirm that all issues have been resolved pursuant to the
6 Final Statement of Decision filed March 26, 2025, the executed Green Island FIT LLC Buyout
7 Agreement dated December 4, 2025, and the Judgment filed February 19, 2026, and there are no
8 remaining issues requiring further adjudication except as specifically reserved therein.”

9 4) On 5/26/2026, Wife filed a Responsive Declaration stating that all issues have not been resolved.
10 Wife states that there is no basis for dissolving the parties’ marital status nunc pro tunc. Wife
11 states that “the proper procedure is a noticed motion under Family Code 2337 with the required
12 declarations regarding health insurance, retirement, taxes, and Social Security – none of which
13 Petitioner has filed.” Wife also states that Husband is in “active breach” of Judge Costin’s
14 Statement of Decision.

15 **B. Findings and Order**

16 The Court has read and considered the pleadings, declarations, and other evidence submitted in this
17 matter. For good cause shown, the Court makes the following findings and orders:

- 18 1) Final orders regarding the entirety of the parties’ community estate have not yet been made.
19 Husband’s request to terminate the parties’ marital status is denied without prejudice to a proper
20 motion brought under Family Code section 2337.
- 21 2) Husband’s request that the Court find that there remain no issues to be resolved in the parties’
22 case is denied without prejudice to the Court’s ability to adjudicate this request at trial.
- 23 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARGARET ELLEN O'CONNELL,

Petitioner

VS.

MARK ANDREW HEITNER,

Respondent

) Case Number: FDI-23-798529

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS; AND BIFURCATION OF
VALIDITY OF PRENUPTIAL AGREEMENT; ADVANCE OF FUNDS

TENTATIVE RULING

The Court has been informed that the parties have an agreement to continue the hearing on Wife's Request for Order filed 2/13/2026. **The parties shall appear in person or by Zoom to select a new date. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JULIE GROULX,

Petitioner

VS.

SUVAS VAJRACHARYA,

Respondent

) Case Number: FDI-24-799234

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER OF CHILD SUPPORT REQUEST FOR ORDER : CHILD SUPPORT ADD
ON EXPENSES, SANCTIONS

TENTATIVE RULING

A. Procedural History

- 1) Petitioner Julie Groulx (Mother) and Respondent Suvas Vajracharya (Father) married on 4/11/2018 and separated on 2/12/2014, for a marriage of 5 years and 10 months. The parties have one minor child, Brielle (DOB: 2/26/2022, age 4). Mother is represented by attorney Anne Fokstuen. Father is represented by attorney Nachlis Cohade Lopez-Whitaker, LLP.
- 2) There is a 10-Year Criminal Restraining Order currently in effect for Mother's protection against Father.
- 3) On 1/20/2026, Judgment was entered in this matter which incorporated the parties' settlement agreement. The settlement agreement provides in relevant part:
 - a. Father shall pay Mother \$5,220 per month in base child support by automated direct deposit.
 - b. Father shall pay 70% of Mother's childcare costs related to employment or school and will follow the directives of FL-192.

1 c. Father shall pay 70% of Brielle's extracurricular activities up to a maximum contribution
2 by Father of \$800 per month. Any extracurricular activity expense above this \$800 per
3 month cap will require mutual consent.

4 4) Now on for hearing is Mother's Request for Order filed 4/6/2026. Mother states that she pays for
5 childcare and extracurricular activities for Brielle in Canadian dollars and there is a dispute
6 between the parties regarding whether Mother must convert her reimbursement requests to US
7 dollars. Mother states Father sometimes fails to timely pay his share of add-on expenses and
8 suggested to Mother's prior nanny that she was overpaid (which caused the nanny to quit).
9 Mother requests that the Court order Father to deposit into a child support trust account a year's
10 worth of Father's share for Brielle's nanny (\$3,000 per month) and activities (the maximum \$800
11 per month) under Family Code section 4560. Father states this will prevent the parties from
12 unnecessary contact and conflict.

13 5) Attached to Mother's Request for Order is a declaration by Mother's attorney Anne Fokstuen
14 who outlines additional issues between the parties, including the fact that Father transferred the
15 incorrect Tesla to Mother, which caused delays and other issues. Ms. Fokstuen states Mother
16 incurred 14 hours to communicate with opposing counsel regarding the Tesla and other items to
17 be transferred and in drafting the instant Request for Order. Ms. Fokstuen anticipates additional
18 legal fees to review the response, draft a reply, and appear in Court. Ms. Fokstuen requests that
19 Father be ordered to pay \$15,000 under Family Code section 271 and 2030.

20 6) On 5/27/2026, Father filed a Responsive Declaration. Father states he previously paid his share of
21 childcare expenses for Brielle's nanny and the parties use OurFamilyWizard (OFW) to manage
22 other child support add-on expenses. Father states that after Mother relocated to Canada in
23 January 2026, she began paying expenses in Canadian dollars but billing Father in US dollars,
24 which leads Father to make an overpayment. Father states he has paid all properly requested
25 expense to date apart from a charge created by Mother on OFW on 4/27/2026 for childcare which
26 was not accompanied by a receipt. Father asks the Court to require Mother to comply with the
27 Judicial Council Form FL-192, which Father states requires (a) an itemized statement of charges,
28 (b) proof of payment, and (c) the amount due and owing from me. Father requests that future
29 requests for reimbursements come with receipts as proof of payment with amount and

denomination, not just invoices. Father asks the Court to deny Mother's request that he be ordered to advance a year of child support add-on expenses and to establish a child support trust account, because "[Mother] has provided no factual basis to modify the current Judgment and she is the one failing to comply with its existing terms." Father further requests that the Court deny Mother's request for attorney's fees sanctions because she requests \$15,000 "without providing any meaningful explanation or itemization of how she arrived at that figure." Father also asks the Court to award him \$7,000 in Family Code Section 271 attorney's fees sanctions because of "[Mother]'s ongoing failure to comply with the FL-192 procedures, her repeated misbilling in USD for expenses incurred in CAD that has caused me to overpay, and her decision to proceed by RFO rather than address straightforward documentation and currency questions through counsel."

- 7) On 5/27/2026, Father's attorney Yau Lee filed a declaration detailing efforts she has made to raise the issues outlined in Father's declaration directly with Mother's attorney, and that Mother's attorney unexpectedly filed her Request for Order rather than continuing to meet and confer. Ms. Lee states that Mother's attorney did not meet and confer in good faith before filing the present motion.
- 8) On 6/2/2026, Mother filed a Reply Declaration reiterating her original requests. Mother raises (for the first time in her Reply) a claim that Father owes her \$2,888.37 in daycare costs, \$563.75 to her part-time nanny, and \$201 in piano lessons. Mother states that after her attorney spoke with Father's attorney, she began submitting all add-on expenses in US dollars along with invoices and receipts, but Father is still not paying the add-on expenses in a timely way. Mother states the childcare costs are likely to remain the same until their daughter starts school, reiterates her request for Father to deposit one year's worth of his share of childcare and activity costs, and that any overpayments can be applied to the next year or can be reimbursed to Father. Mother states she should "not have to communicate with my abuser every month to get reimbursement and support our daughter" and that her proposal is "likely less expensive than having to involve lawyers every month."
- 9) On 6/2/2026, Mother's attorney filed a declaration stating that Mother had incurred \$5,337.54 before she reviewed Father's responsive declaration and with additional fees incurred through the drafting of the Findings and Order After Hearing, the total fees charged will likely be \$12,737.54.

Ms. Fokstuen states, “The case has not finished yet and therefore the request for \$15,000 in legal fees should be granted caus[ed] by the Respondent’s lack of cooperation in finalizing the judgment and making payment for the child to the Petitioner.”

B. Findings and Order

The Court has read and considered the pleadings, declarations, and other evidence submitted in this matter. For good cause shown, the Court makes the following findings and orders:

- 1) The Court does not find good cause to grant Mother’s request for Father to pre-pay a year’s worth of childcare and activity expenses under Family Code section 4560. Mother’s request is denied.
- 2) The Court also does not find good cause to modify the terms of the 1/20/26 Judgment as it relates to the child support add-on reimbursement procedure. The parties are ordered to comply with the terms of the Judgment, including the requirement that the parties follow the procedures outlined in Judicial Council Form FL-192.
- 3) Because disputes have arisen regarding how to comply with the reimbursement procedure for add-ons, the Court will make the following clarifying orders. When Mother seeks reimbursement from Father for child support add-on expenses, she must provide to Father (a) an itemized statement of charges, (b) proof of payment, and (c) the amount due and owing from Father in US dollars. If it is unclear from the statement of charges or proof of payment what denomination the expense was charged and paid, Mother shall include a note clarifying this. Father then has 30 days to make the payment requested.
- 4) The Court will not make any order regarding Mother’s claim that Father owes her \$2,888.37 in daycare costs, \$563.75 to her part-time nanny, and \$201 in piano lessons as this claim was raised for the first time in Mother’s Reply Declaration. The parties are ordered to meet and confer on this issue.
- 5) Each party’s request for Family Code section 271 attorney’s fees sanctions is denied.
- 6) Mother’s request for attorney’s fees under Family Code section 2030 is denied without prejudice as Mother did not file an Income and Expense Declaration despite having ample time to do so.
- 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FUAT CELEBI,

Petitioner

VS.

UNZULE CELEBI,

Respondent

) Case Number: FDI-25-800869

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER ORDERS PURSUANT TO FAM. CODE SECTION 2107

TENTATIVE RULING

A. Procedural History

- 1) The parties in this matter are Petitioner Fuat Celebi (Husband) and Respondent Unzule Celebi (Wife). The parties married on 5/15/2017. The parties agree they separated on 12/4/2024, for a marriage of 7 years and 7 months. The parties have one minor child, Muhammed (DOB: 8/10/2017, age 6). Both parties are self-represented.
- 2) On 1/20/2026 in related Case No. FDV-24-818058, the parties entered a Stipulation and Order Re: Resolution of DVRO and Child Custody and Visitation. The parties agreed to allow the Temporary Restraining Orders awarded for the protection of each party to expire and vacated their trial dates on the mutual Requests for Domestic Violence Restraining Order. The parties also entered into several agreements regarding custody and visitation.
- 3) Now on for hearing is Wife's Request for Order filed 2/3/2026 asking the Court to grant her voluntary waiver of receipt of Husband's Preliminary and Final Declarations of Disclosure and prevent Husband from presenting evidence on issues that should have been covered in those declarations under Family Code section 2107. Wife also asks the Court to enter the "attached Judgment of Dissolution." The Court notes there is no proposed Judgment attached to Wife's Request for Order. Wife attached a declaration by her consulting attorney Katrina Asuncion who

1 states she has on multiple occasions requested Husband to prepare and serve his financial
2 disclosures and Father did not respond.

3 4) Per Wife's Proof of Service filed on 4/23/2026, Wife's Request for Order and the Tentative
4 Ruling Instructions were mailed to Husband on 4/23/2026.

5 5) On 5/27/2026, Husband filed a Declaration Regarding Service of Preliminary Declaration of
6 Disclosure (FL-141) stating that he served his PDD on 5/27/2026.

7 6) On 5/27/2026, Husband filed a Responsive Declaration stating he does not consent to Wife's
8 Request for Order.

9 7) Per Husband's Proof of Service filed on 5/27/2026, Husband's Responsive Declaration, Schedule
10 of Assets and Debts, Income and Expense Declaration, and Declaration of Disclosure was served
11 on Katrina Asuncion on 5/27/2026. The Court notes that Katrina Asuncion is Wife's consulting
12 attorney, not Wife's attorney of record.

13 8) Mother did not file a Reply Declaration.

14 **B. Findings and Order**

15 The Court has read and considered the pleadings, declarations, and other evidence submitted in this
16 matter. For good cause shown, the Court makes the following findings and orders:

17 1) As it appears Husband has served his Preliminary Declaration of Disclosure, Wife's request that
18 the Court grant her voluntary waiver of receipt of Husband's Preliminary Declaration of
19 Disclosure and prevent Husband from presenting evidence on issues that should have been
20 covered in that declarations under Family Code section 2107 is denied as moot.

21 2) Wife's request that the Court grant her voluntary waiver of receipt of Husband's Final Declaration
22 of Disclosure and prevent Husband from presenting evidence on issues that should have been
23 covered in that declaration is denied without prejudice, as the deadline for Husband to serve his
24 Final Declaration of Disclosure under Family Code section 2105 has not yet passed.

25 3) Wife's request that the Court enter Wife's proposed Judgment is denied.

26 4) The Court will prepare the Findings and Order After Hearing.
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29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

THACHPHAN LOWE,

Petitioner

VS.

KENNETH SHING LOWE,

Respondent

) Case Number: FDI-26-802703

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: ROGER CHAN

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, ATTORNEY'S FEES AND
COSTS

TENTATIVE RULING

Per agreement of the parties, the hearing on Petitioner's Request for Order filed 4/8/2026 shall be
continued to **11/10/2026 at 9:00 AM in Dept. 404.**